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CASE #	CASE NAME	HEARING NAME
CVRI2403260	QUIJANO vs GENERAL MOTORS, LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Plaintiffs, Juan and Sonya Quijano, allege that on 7/26/23, he purchased a new 2024 Chevrolet Silverado for \$95,316.72 from Riverside Chevrolet, which was accompanied by warranties. Defendant General Motors, LLC manufacture red the vehicle. Plaintiffs allege the vehicle was delivered with serious defects and nonconformities to warranty including the engine and steering system. Plaintiffs presented the vehicle for repairs to a GM authorized repair facility on several occasions, which represented the vehicle was repaired but, was unable to conform it to the warranty after a reasonable number of repair attempts. Plaintiffs continued to experience symptoms of the defects, which impaired the use, value and/or safety of the vehicle. Defendant refused to repurchase or replace the vehicle. Plaintiffs filed their complaint on 6/12/24 alleging three causes of action for violations of the Song Beverly Act (SBA): 1) breach of express warranty; 2) breach of implied warranty; and 3) violation of Civil Code § 1793.2.

Now, Plaintiffs move for \$48,083.34 in attorneys' fees and costs. This amount consists of \$44,564.17 in attorneys' fees, an additional \$2,250 to review Defendant's opposition, draft the reply, and attend the hearing on this motion, and \$1,269.17 in costs. Plaintiffs state they are the prevailing party under the Song-Beverly Act and pursuant to the CCP § 998 Offer agreed to between the parties. Plaintiffs argues they are thus entitled to attorneys' fees and provides support for the requested hourly rates and billing entries.

In opposition, Defendant argues the motion should be denied entirely as untimely. In the alternative, Defendant challenges the reasonableness of the rates, argues entries are excessive, and that no multiplier is warranted.

In reply, Plaintiffs argues no judgment has been entered and that the court retained jurisdiction under CCP § 664.6 to enforce the settlement, which would include the issue of attorneys' fees. Plaintiff otherwise attempts to further justify the rates and billing entries.

ANALYSIS

The Song-Beverly Act contains a cost-shifting provision that expressly allows prevailing plaintiffs to recover their costs and expenses, including attorney fees. Civil Code §1794(d) provides: "If the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." There is no dispute that Plaintiffs are the prevailing party in the action.

The main issue is the timeliness of Plaintiffs' motion. In arguing the motion is untimely, Defendant cites to California Rules of Court, Rule 3.1702(b)(1), which states: "A notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court--including attorney's fees on an appeal before the rendition of judgment in the trial court--must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case or under rules 8.822 and 8.823 in a limited civil case." The normal time limit for filing a notice of appeal (and an attorney fee motion) is 60 days after the clerk's or any party's service of notice of entry of judgment, or 180 days after the date of entry, whichever is the earliest. (CRC 8.104(a).)

Defendant also cites to a recent Fourth District Court of Appeal decision, *Hatlevig v. General Motors, LLC* (2026) 118 Cal.App.5th 644 ("*Hatlevig*"). In *Hatlevig*, the parties reached a settlement that agreed the plaintiff was the prevailing party for purposes of attorneys' fees. (*Id.* at 646.) At a trial readiness conference, plaintiff notified the court of the settlement and the court ordered a dismissal be filed within 45 days. (*Id.*) The clerk generated a "Notice of Dismissal by Court" which stated the case would be deemed dismissed without prejudice on 8/15/2023 unless a judgment or dismissal was filed or a party appeared to show good cause why the case should not be dismissed. (*Id.* at 647.) Neither event occurred by 8/15/2023. (*Id.*)

On 8/31/2023, the *Hatlevig* plaintiff filed a motion for attorneys' fees and in opposition, General Motors argued the motion was untimely because it had not been served within 180 days of the date of settlement, citing to California Rules of Court, Rule 3.1702(b)(1). (*Id.*) The trial court denied the motion, agreeing with General Motors that it was untimely because the case was dismissed on 8/15/2023 and the plaintiff filed the motion more than 180 days thereafter. (*Id.*)

The Fourth District affirmed, agreeing that the "event" that "started the clock running" is the conclusion of the litigation on its merits on 8/15/2023. (*Id.* at 649.) The Fourth District stated, "Rule 3.1702 does not require an appealable order or judgment even though it uses 'the time for filing a notice of appeal' to set the deadline for serving and filing a motion for attorney fees" and that, "A voluntary dismissal, though not appealable, starts the clock running on the time to move for attorney fees when the dismissal concludes the litigation and triggers a right to fees." (*Id.* [citations omitted].) The court recognized that the actual dismissal order was not filed until 6/17/2024, when the trial court signed a minute order dismissing the operative complaint without prejudice, but stated that date was "...not the date of dismissal for purposes of starting the clock running on the time *Hatlevig* had to move for attorney fees." (*Id.* at 650.) The Fourth District noted that *Hatlevig* implicitly acknowledged the case had been dismissed by filing its motion for attorneys' fees on 8/31/2023 – but failing to serve it until two months later. (*Id.*) The court thus upheld the trial court's denial of the motion for attorneys' fees because 180 days after the dismissal was 2/11/2024, and while *Hatlevig* filed the motion before that date, it was not served until after the 180 day deadline expired. (*Id.*)

A similar timeline and procedural history are seen in this case. On 8/7/2025, Plaintiffs filed a notice of settlement of the entire case. On 8/12/2025, the court issued a Notice of Order to Show Cause re: Dismissal After Conditional Settlement. On 11/21/2025, on its own motion, the court dismissed the case without prejudice for the failure of Plaintiffs to file in a timely fashion a declaration in response to an order to show cause why the matter should not be dismissed. Under *Hatlevig*, 11/21/2025 is the date the clock began to run for Plaintiffs to file the motion for attorneys' fees – which makes 5/20/2026 the deadline by which Plaintiffs needed to bring this motion. Plaintiffs filed the motion on 5/21/2026, one day late.

Plaintiffs' arguments in opposition are without merit. Plaintiff argues *Madrigal v. Hyundai Motor America* (2023) 90 Cal.App.5th 385 controls. However, *Madrigal* involves the interpretation of the cost-shifting provisions under CCP § 998 and does not address the filing deadlines for fee motions under Rules 3.1702 or 8.104. Moreover, Plaintiffs failed to file the CCP § 998 Offer or enter judgment thereunder. Rather, just as in *Hatlevig*, Plaintiffs failed to respond to the court's order to show cause as to why the case should not be dismissed.

Plaintiffs also argue that the court's retention of jurisdiction under CCP § 664.6 and the lack of a final judgment means the 180 day clock has not started. But this is entirely inapposite to the ruling in *Hatlevig* that makes clear Rule 3.1702 "...does not require an appealable order or judgment" to begin the deadline for serving and filing a motion for attorneys' fees. (*Hatlevig*, *supra*, 118 Cal.App.5th at 649.)

Finally, Plaintiffs state that the court "vacated" the 11/21/2025 dismissal at the order to show cause hearing on 11/24/2025 and thus, the two orders conflict such that the last in time order must be given preclusive effect. (See Plaintiffs' Reply, p. 6:24-7:9; See also, Declaration of Allen Amarkarian in Support of Reply ¶ 7.) While the court entered a minute order on 11/24/2025 stating the matter had been dismissed without prejudice and the court retained jurisdiction under CCP § 664.6, the order states there were no appearances and the docket indicates the OSC hearing itself was vacated. The 11/24/2025 minute order likewise does not mention vacating the 11/21/2025 order, which is ultimately the dismissal signed by the Court. These are not conflicting rulings and even so, Plaintiffs do not cite any binding authority in support of this argument.

The hearing on this motion was previously set for 7/9/2026. The court continued the hearing, explaining, "Plaintiff reports that there are two (2) conflicting orders filed by Department 3 in regards to with and without prejudice." Plaintiff filed a supplemental brief, as allowed by the court's 7/9/2026 ruling, again arguing that the 11/21/2025 was with prejudice. But a review of the 11/21/2025 Order of Dismissal clearly states that "The dismissal is *without* prejudice..." (emphasis in original.)

So again, these are not conflicting rulings and there is still no evidence (other than Plaintiff counsel's declaration which already misstates the court's 11/21/2025 ruling) that the court actually vacated the 11/21/2025 ruling on 11/24/2025.

For these reasons, the court DENIES the motion as untimely.